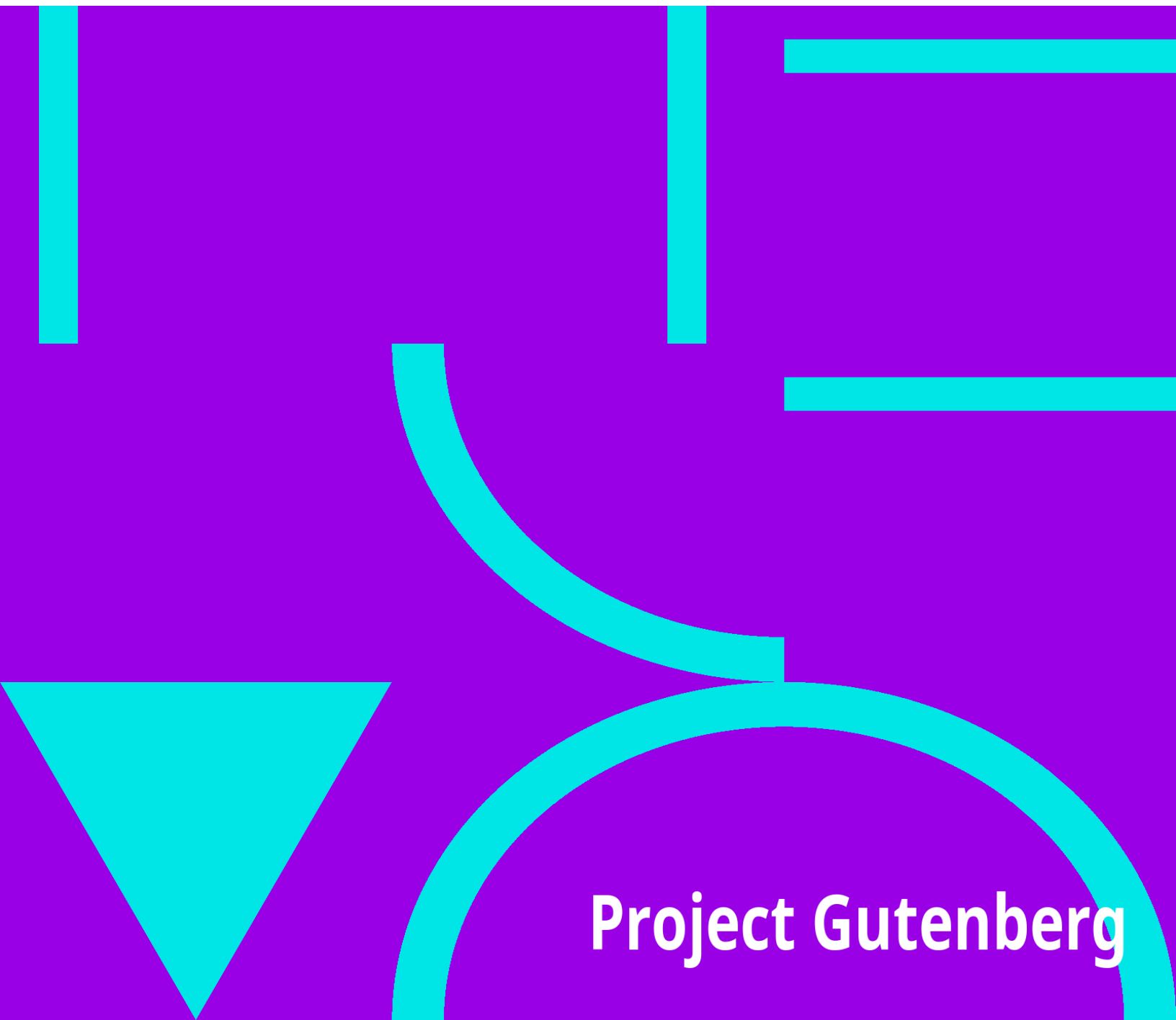


The Jesuits

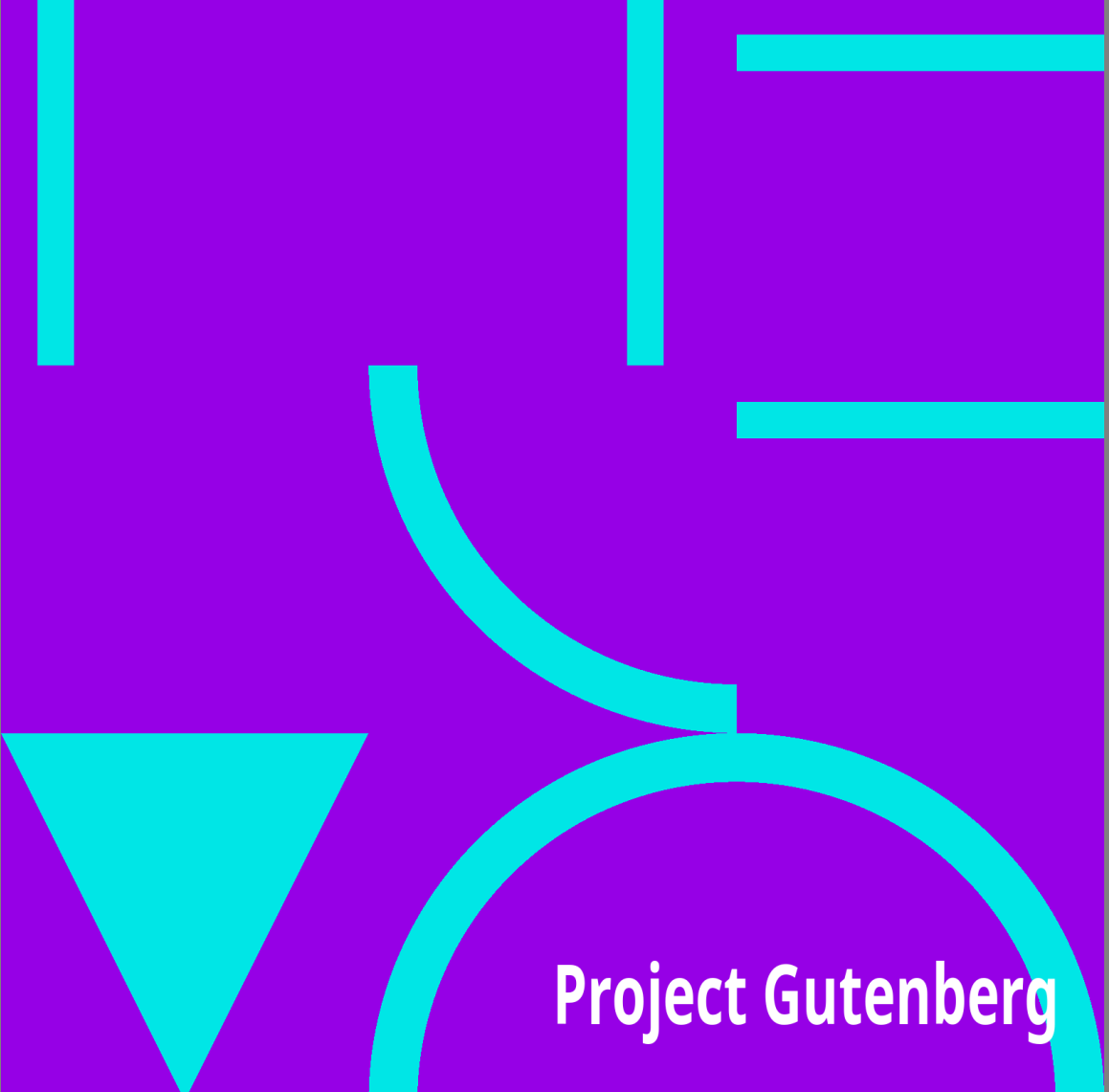
Henry Waller and Edward Hoare

An abstract geometric design on a black background. It features several yellow shapes: a large triangle on the left, a curved line in the center, and a large arc at the bottom. On the right side, there are two horizontal red lines. The text 'Project Gutenberg' is written in white at the bottom right.

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The Jesuits

Henry Waller and Edward Hoare



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THE JESUITS:

A
CORRESPONDENCE
RELATIVE TO A LECTURE SO ENTITLED,
RECENTLY DELIVERED BEFORE THE
ISLINGTON PROTESTANT INSTITUTE,
BY THE
REV. EDWARD HOARE, M.A.,
Incumbent of Christ Church, Ramsgate.

“Thus men go wrong with an ingenious skill,
Bend the straight rule to their own crooked will,
And with a clear and shining lamp supplied,
First put it out, then take it for their guide.”

Cowper's Progress of Error.

LONDON:
BURNS AND LAMBERT, 17 PORTMAN STREET,
PORTMAN SQUARE.

1852.

W. Davy and Son, Printers, 8, Gilbert-street, Oxford-street.

INTRODUCTION.

IN a Lecture on the Jesuits, recently delivered before the Islington Protestant Institute by the Rev. EDWARD HOARE, M.A., Incumbent of Christ Church, Ramsgate, and since published, there occurs the following passage with the note subjoined:—"It would not be fair to attach to the Order the opinions of the individual, unless these can be proved to be fully borne out and sanctioned by the fixed and authoritative documents of the Society. Nothing, however, can be clearer, than that the sentiments then expressed, [*i.e.*, alleged to have been expressed on an occasion before referred to], were those not of the man, but of the Order; for although there is an exceptive clause inserted in one of the Constitutions, as if for the relief of unseared consciences, so that the Statute runs thus, 'Conforming their will to what the Superior wills and thinks in all things, where it cannot be defined that any kind of sin interferes;' ^[3] yet a little further on there is another section wherein that clause is wholly nullified, and the original principle boldly asserted. 'Although the Society desires that all its Constitutions, &c., should be undeviatingly observed, according to the Institute, it desires, nevertheless, that all its members should be secured or at least assisted against falling into the snare of any sin which may originate from the force of any such Constitutions or injunctions; therefore, it hath seemed good to us in the Lord, with the express exception of the vow of obedience to the Pope for the time being, and the other three fundamental vows of poverty, chastity, and obedience, to declare that no Constitutions, declarations, or rule of life, can lead to an obligation to sin, mortal or venial.' Thus far all is well; what more can be required? But now mark the next passage. '*Unless the Superior may command them in the name of our Lord Jesus Christ, or in virtue of the vow of obedience; and this he may do whenever, and to whomsoever, he may judge it conducive either to individual good or to the universal well-being of the Society.* And in the place of the fear of offence, let the love and desire of all perfection succeed;

that the greater glory and praise of Christ our Creator and Lord may follow.’ So that the poor Jesuit may be compelled to commit what he knows to be a mortal sin at the bidding of his Superior. He may clearly see it to be utterly opposed to every principle of Scripture; his own conscience may turn from it with horror; his moral sense may utterly condemn it; he may see clearly that he is flying in the face of the most High God; but on he must go, because his Superior bids him; and in order to obtain an object, which the Superior considers conducive to the interests of the Society, he must freely consent to have his deepest convictions wholly disregarded, and his principles of moral rectitude for ever crushed within his soul.” ^[4]

The present writer is the person alluded to in the note as having complained of this shocking statement, and stated what is the true meaning of the Constitution of which it is such an utter perversion. What he said on the subject forms his portion of the following correspondence. The publication of the entire correspondence that passed on the occasion, will, it is hoped, afford Mr. Hoare’s readers the readiest means of determining for themselves whether the accusation he has brought is sustainable or not.

The writer may advert here to a consideration which was overlooked in the course of the correspondence by both Mr. Hoare and himself. From first to last Mr. Hoare has considered the question simply with reference to the rules of scholarship; it is believed, however, that the ordinary principles of scholarship, *i.e.*, of classical scholarship, have hardly any place in the discussion at all, and this for the following reason:—Christianity having introduced its new and complex subject-matter, there followed, in matter of fact, what we should beforehand expect to find, *viz.*, a corresponding modification of the language which became its organ. Expression had to be found for the mind of the Church in a medium to which almost all her ideas were foreign and strange; she had to adapt it to her purpose in her own way; new ideas provided for themselves new forms of language; words were added, existing words acquired new meanings and were used in new combinations; and by this natural process there was brought about in the course of years, almost as great a difference, as regards idiom, between the Latin of the Church and the classical Latin, as is observable in the case of any two modern languages having a common origin. The writer is not a theological student, and is not saying this from his own knowledge; but he

understands from those who are qualified to speak on the subject, and in whom he places implicit confidence, that the fact is as he has stated.

So then, possibly “obligatio ad peccatum,” meaning “an obligation binding under pain of sin,” may displease the classical Latinist, but it is a term of Theology, and beyond his province. The question is not how *he* would express that meaning in Latin, but how he should construe a particular phrase which he finds Theologians have adopted. It is used by Catholic ^[2] and Protestant writers alike, and must be understood as they understand it. Its use by St. Alphonso was but very lately brought into prominent view: a writer in the *Dublin Review* for October last, had occasion to animadvert on a Protestant author’s having translated these words of St. Alphonso, “nullo jure obligante ad mortale,” thus—“by no law that is obligatory,” and so having omitted to render the important words “ad mortale.” It appears from a reply by the Protestant author, that “the misprint,” as he calls it, was corrected in a second edition of his work; but that the phrase meant “obligatory under pain of mortal sin,” was admitted on all hands; and this was in a most adverse quarter.

It will be seen that for so much of the note extracted above as follows the Latin quotation, Mr. Hoare is not responsible; it was added, through mistake, by another gentleman. The circumstance will account for a contrariety of statement to be observed with reference to Const., part iv, chap, i, but which does not call for more particular notice.

It is said, with some ambiguity, “that the version thus excepted against is by no means an exclusively Protestant one, but has been adopted by most competent Roman Catholic authorities;” and Dr. Wordsworth’s work seems to be referred to in behalf of the statement. It will be found, however, that the “historical research” of that writer has only enabled him to adduce the instance of Stephen Pasquier, who is said to have given the version in a speech which he made as an advocate in a cause, in which the Jesuits were his opponents. In the *Biographie Universelle*, Stephen Pasquier is spoken of as “un homme passionné,” and “en titre adversaire des Jesuites.” ^[3]

With Mr. Hoare’s Lecture as a whole, the writer is not concerned: the friend, a Protestant, who kindly directed his attention to the single statement which he has exposed, informed him at the same time that there was little

besides in the lecture that seemed to him to call for notice; a cursory glance over its pages has satisfied the writer of the correctness of that view; and statements which few, surely, can believe, will, he trusts, produce in the minds of readers an effect the very reverse of that intended.

CORRESPONDENCE.

12, Manor Road, Upper Holloway,
Feast of the Immaculate Conception, 1851.

My dear Sir,

I will not make an acquaintance so slight as ours with each other my excuse for this letter, but rather hope that my object in writing it—viz., the removal of a very great misapprehension—will, of itself, prevent your regarding it as an intrusion. A friend of mine, a protestant, was present at the lecture which you recently delivered in Islington on the Jesuits, and I learn from him that you stated, that, by the Constitutions of the Society of Jesus, the members of the society may actually be commanded by their Superiors to commit mortal sin. I do not understand from my friend that you cited any passage from the Constitutions in support of this fearful statement: I venture to think it most likely that you were content to make it on the authority of some, perhaps, respectable name, but, as not doubting its correctness, without referring to the Constitutions to verify it. I believe the passage on which the statement has been made to rest is to be found in Const. part vi., chap. 5, which Dr. Wordsworth and others have construed to mean what you say: Dr. Wordsworth having altered the text for the purpose.

Now I confidently submit that the true version of that passage is—The Constitutions do not bind under pain of mortal or venial sin, unless the Superior commands the observance of them in the name of our Lord Jesus Christ, &c.

May I not fairly hope that you will look into the matter? I make the request for truth's sake and charity's sake. Some of the lectures delivered before the Islington Protestant Institute are, I know, afterwards published; two delivered by you have been published; I feel sure that I shall not have the

pain of seeing this last go forth with the statement, which I have thus taken the liberty of asking you to reconsider, uncorrected.

I am, my dear Sir,
Yours faithfully,
HENRY WALLER.

Rev. Edward Hoare.

Ramsgate,
Dec. 11, 1851.

My dear Sir,

You need make no apology for writing to me on the subject of my lecture, and I am much obliged to you for so doing, as I cordially desire to elicit truth and *nothing else*. The passage which I quoted was, as you suppose, the 5th chap. of the 6th part of the Constitutions, and my authority is an edition of the Constitutions published by Rivington in 1838, which I have compared since your note with the extracts given in Taylor's Loyola, who has evidently used another edition, though differing in no essential particular.

I have also carefully examined the passage with your exposition before me, and submitted it to some of the best scholars that I know; but I confess myself quite at a loss to translate the words in the original so as to force upon them the meaning which you think they are intended to convey. Surely the expression, "Obligationem ad peccatum mortale vel veniale inducere," makes sin the object of the obligation, and does not merely describe the character of the fault. If the words were, *peccati mortalis*, &c., instead of "ad peccatum, &c.," I think that the passage would have borne your interpretation, but as it stands, I must still believe that the version which I gave of it was correct. I cannot therefore expunge it from my lecture; but as I sincerely desire to make no false charge against an opponent, I will subjoin the Latin copy, so that any scholars may be able to decide as to the merits of the question.

I cannot close my note without adding the expression of my deep and heartfelt sorrow that you have been led to abandon the truth in which you

were trained, for the, as I believe, unscriptural system of the Church of Rome. Putting all other considerations out of the question, it is enough to my mind to condemn the whole system when I find it adopting the company of Jesuits, of whose morality and mischievous intrigues it had already had, according to Clement XIV., such mournful experience.

Earnestly hoping that the Lord may guide you into the way of truth,

I remain, dear Sir,
Very faithfully yours,
EDWARD HOARE.

H. Waller, Esq.

8, New Square, Lincoln's Inn,
Dec. 1851.

My dear Sir,

I have to thank you for the manner in which you have received my communication, but I am sorry to find that, contrary to my expectation, a simple reference to the original text of the Constitutions has not sufficed to show you that the version for which you contend is, as I still believe I shall be able to convince you, founded in misapprehension. I attribute to you—I am bound to attribute to you a *wish* to see it satisfactorily proved, that the passage has not the dreadful sense which has been given it, and which you assign to it simply because it seems to you unavoidable. I cannot think, then, that I have a difficult task to accomplish.

In several places in the Constitutions the expressions, “obligatio ad peccatum,” “obligatio peccati,” and “obligatio sub pœnâ peccati,” are used indifferently, as equivalent to one another. Thus, the title of cap. v., pars vi., itself is, “Quod Constitutiones peccati obligationem non inducunt;” obviously the same thing must be meant as by, “obligatio ad peccatum,” in the chapter itself. Now you admit that, “obligatio peccati” has the same meaning as “obligatio sub pœnâ peccati;” surely then “obligatio ad peccatum” has the same meaning too.

In pars ix., c. v., § 6, the following passage occurs: “si non compulerit talis obedientia Summi Pontificis, *quæ ad peccatum obligare posset*,” even in the translation which accompanies the edition of the Constitutions to which you have referred me, this is rendered, “unless such obedience to the Pope, as is *compulsive under the penalty of sin*, oblige him, &c.” What could have led the translator to put a different meaning on the same expression in the passage we are discussing, I cannot conceive, except I impute it to prejudice.

I do not deny that *obligare ad aliquid* frequently means *to oblige a person to do something*; but I deny that it does or, construed with all the context, *can* mean this in the particular passage. I would beg you to consider the whole chapter, which, I really must say, is turned, not only into something fearful, but into something quite absurd by the construction you give it. Only reflect on the frightful incongruity of any one commanding another to commit sin in the name of our Lord Jesus Christ, and of the person of whom this is required complying through love and a desire of all perfection. I hope you will say that this had escaped your notice, not tell me that to urge it is begging the question. Pray read the entire chapter in accordance with the version Catholics give of the passage in question, (if that is to be called a version which simply declares its meaning,) and I still entertain a hope that you will discover its excellent purport and intention.

I may observe, though I do so with some diffidence, as I have almost forgotten my grammar, that in order to make the passage bear the sense which you put on it, the pronoun “ea” should be, not in the plural but the singular, as I presume you refer it to “peccatum mortale vel veniale,” which is disjunctive; and then should be, not *id* but *hoc*.

I find that many Protestant writers have repudiated, or at least not adopted, the bad meaning. Thus, Steinmetz in his *Novitiate* says: “Part vi., c. 5.—Where it is decided, that the guilt of sin attached to disobedience when the superior commands in the name of our Lord Jesus Christ, or in virtue of obedience.”—*Novitiate*, p. 98, 2nd ed. 1847. And in his *History of the Jesuits*, he does not, so far as I have been able to find, say anything different.

I might say more in vindication of the Constitutions of the Jesuits, but I think I have said enough to justify an expectation that you will be convinced of the incorrectness of your statement.

As to what you say at the end of your letter, permit me to remark, that I abandoned no positive doctrine [in which I had been trained], in embracing the Catholic faith; and as to the hope which you very kindly express, that the Lord may guide me into the way of truth, I must tell you that when God led me in a remarkable manner into His Church, which is “the ground and pillar of the truth,” He put me on that way, and that it “is the way,” ^[14] I have an internal and external assurance which, I know, cannot be had in protestantism.

I remain, my dear Sir,
Yours faithfully,
HENRY WALLER.

Rev. Edward Hoare.

Ramsgate,
Dec. 22, 1851.

My dear Sir,

I thank you very much for your full communication, and I fear that you will think me very much prejudiced when I state that whatever were the intention of the writer, I still think that the version which I have given is most in accordance with the Latin.

With reference to your criticisms, I have read the constitutions carefully, and I cannot agree with you that the expressions “obligatio ad peccatum”—“peccati”—and “sub pœnâ peccati”—are used indifferently in any other portion of the book, unless it be the extract quoted by you from the 9th part. This appears to me a very important extract, and is the only thing which has at all shaken my opinion. I am, however, exceedingly doubtful whether the translator has given its true meaning, while at the same time I fully admit that his having so translated it is a strong and valid argument in favour of your interpretation.

With reference to your two other points, I certainly think that the words “obligatio peccati” might include either sense; so that the utmost that can be gathered from the heading is that as far as it is concerned the section may bear the harmless sense, but whether it does or not must be decided by the contents.

I had noticed the “ea” before you mentioned it, and you will perhaps be surprised at hearing that it failed to carry conviction to my mind. It does not agree with peccatum, but what does it agree with unless it be with “Constitutiones, &c.”; and if it does, the meaning is not at all altered, as it is the “vis constitutionum” by which the Jesuit is to be drawn “in laqueum peccati.”

Then again, if this be the meaning of the passage, it appears to me very strange that it should be placed just after the chapter on obedience, in the middle of the Constitutions, and not at the commencement or close of the book. It certainly is a very extraordinary place for it, if it really describes the obligatory force of the whole code.

On the whole, therefore, I confess myself very much at a loss upon the subject, and am inclined to think that very possibly it may be understood by members of the Society in the sense in which you apply it, while on the other hand I am thoroughly convinced that the majority of Latin scholars would translate it as I did in my lecture. I cannot therefore withdraw it, because I am not prepared to acknowledge any inaccuracy in my version; but I will subjoin the Latin, and add the reference from the 9th Part, so that the matter may be fairly presented to the reader.

Once more thanking you for your communication, and deeply regretting our difference of opinion on the great questions affecting Christian truth,

I remain, dear Sir,
Very faithfully yours,
EDWARD HOARE.

H. Waller, Esq.

8, New Square, Lincoln's Inn,
Jan. 2nd, 1852.

My dear Sir,

The festivals of this holy season have not left me leisure to reply to your letter as I ought, until now, and deeply I regret that it should not have called for a different answer from this. When I wrote last, I submitted for your consideration, not all that occurred to me in behalf of the true meaning of the Constitution, but so much as it seemed to me might be urged without implying a misgiving as to the charity and fairness of mind of the person to whom it should be addressed,—a misgiving I am unwilling to entertain with regard to you or any one. But it is, I confess, with greatly diminished confidence as to the result of what I shall say, that I now proceed to add to what I have said already.

When you say that whatever were the intention of the writer, you think the version you have given of the passage is most in accordance with the Latin, and that though very possibly it may be differently understood by members of the Society, you are convinced that the majority of Latin scholars would translate it as you do, you surely forget that the question we are concerned with is, not one of scholarship, not one of mere words, but simply a question of fact,—What is the Constitution? The question is precisely, What did the founder mean, what do the members understand? What he meant, and what they understand, that the Constitution is and nothing else.

However, as a mere question of Latin I should have no reason to fear the result of an appeal to scholars, for those to whom I have submitted it, two Oxford men and a Cambridge man, and all Protestants, agree in construing the passage as I do; on the other hand, I suppose I may safely assert that you cannot produce any Catholic authority for the correctness of your version—not even Pascal.

But supposing the words capable of receiving the sense which you impute to them, surely you are not therefore justified in making your statement, if, as you seem to allow, another and an unexceptionable meaning is also admissible. Ambiguity, in some degree or other, is a property of all language, even of inspired language; the fact does not leave us at liberty to choose which of several possible meanings we will, but obliges us to have recourse to recognised principles of construction, to ascertain the determinate meaning of the author.

Every fair principle of interpretation with which I am acquainted seems to me to be disregarded in your translation.

Here, then, I will cite a passage from a work of the greatest authority, Rodriguez on Christian Perfection: Rodriguez was himself a Jesuit, and speaks thus of the Constitution in question: first there is this heading, “That though our rules do not oblige under penalty of sin, yet nevertheless we ought exactly to observe them”; and then he proceeds, “Our Rules and Constitutions,” he is speaking of the Society of Jesus, “do not oblige us under pain of mortal sin, nor even of venial, no more than the commands of our Superiors, unless it be, as our Constitutions declare, when they command on God’s part or by virtue of holy obedience. Yet we ought to take heed, lest for this reason we come to neglect them, &c. Our holy founder would not on the one side bind us so fast as might give us an occasion of sin, and on the other, being desirous to move us to an exact observance of them, with all possible perfection, he gives us this wholesome advice. *Let the love of God, says he, succeed in the place of the fear of offending him, and let it be the desire of your greater perfection, and the greater glory of God, that moves us to perform your duty herein.* He says also, in the beginning of our Rules and Constitutions, that the interior law of charity, which the Holy Ghost has writ in our hearts, ought to move us to an exact observance of them.” (Third Part, Treat. 6, chap, iii, p. 350, ed. Lond., 1699.)

How are we ever to arrive at the sense of a document, if we are not to be guided by the understanding of those whose position enables them to speak with most knowledge of its subject-matter, [intention, and end]? Ask the meaning of the chapter in whatever quarter of the Church you will, and but one reply will be made.

I cannot at all agree with you, that having this meaning the chapter is misplaced; on the contrary, I know not where a more fit place could be found for it.

Since you are doubtful as to the meaning of “obligare ad peccatum” in the place to which I have referred you, I can hardly hope that you will look more favourably upon the expression in two other places in which it occurs, viz.,—Pars. ix, cap. iv, § 5, and cap. v, § 6. But I have to submit to you the

following sentence from the Protestant Bishop Sanderson's Prælectiones: "omnis enim obligatio aut ad culpam est aut ad pœnam, vel etiam utramque." (Præl. vi, p. 154, ed. Lond., 1686.) I shall never be induced to give this a bad meaning.

I imagined that you referred the pronoun "ea" to "peccatum mortale vel veniale," because I found that Dr. Wordsworth did so in rendering the passage as you do; he, with much cleverness, altered *ea* into *id*.

I regret the length to which my letter has extended; I had indeed hoped that our correspondence by this time would have been brought to a more agreeable issue.

With reference to an expression at the conclusion of your letter, I must protest against your supposing that the Catholic faith is simply commensurate with our judgments, like Protestantism, and has no surer basis than opinion.

I remain, my dear Sir,
Yours faithfully,
HENRY WALLER.

Rev. Edward Hoare.

Ramsgate,
January 5, 1852.

My dear Sir,

I am sorry that you do not think me candid in the consideration of the Constitution, for I have heartily desired to ascertain the truth, and perhaps you will allow me to suggest that where there is a difference of opinion it is scarcely fair to attribute it to want of fairness of mind in the discussion.

The fact is, that I have given the subject much anxious study, and you will perhaps be surprised when I tell you, that my opinion is less shaken than it was when I wrote last, so that when I had to revise the proof I erased a part of the note that I had previously written, and have now simply stated your opinion and added the Latin.

With reference to your last letter I think that you can scarcely have referred to the two passages which you mention as containing the expression —“obligatio ad peccatum;” for in the one (ix, iv, 5.) the words are—“sub pœnâ peccati,” and the other (ix, v, 6.) is the very one already under discussion.

I have not the edition of Bishop Sanderson to which you refer, but if you think it worth while to let me know the prelection in which the words occur, I will endeavour to examine them, though I am not sure I shall be able, as I have not all of them within reach.

I cannot imagine what I should have said which has led to the idea—“that the Catholic faith is commensurate with our judgments, and has no surer basis than opinion;” the basis of the Gospel is the revealed word of God, and that remains the same whatever be man’s opinion.

I remain, dear Sir,
Very faithfully yours,
EDWARD HOARE.

H. Waller, Esq.

8, New Square, Lincoln’s Inn,
January 8, 1852.

My dear Sir,

I greatly regret my carelessness in having given you such faulty references. Instead of referring to the *Constitutions*, part ix, c. iv, § 8, and c. v, § 6, I should have referred to the *Declarations* corresponding to those passages. In the first passage, where the *Constitutions* have, as you say, “obligando sub pœnâ peccati,” the corresponding declaration says, “nec Societas approbabit, si Pontifex præcepto quod ad peccatum obliget, non compelleret.” As to part ix, c. v, § 6, to which I referred you in a previous letter, I find that the declaration has the same expression as the Constitution. There is still another place in the *Constitutions* in which “ad peccatum obligare” occurs, viz., pars vi, cap. iii, § 8, and here it is again correctly rendered in the translation published by Rivington; thus the author of that translation has twice given the phrase its true meaning. In the

declaration on the Examen Generale the expression also occurs,—“obligatio vera dicendi in examine, ad peccatum esse debet,” (cap. iii, § 1.) and the meaning is plain. I have quoted from the Prague edition of 1757. I am aware that the edition published by Rivington does not contain the declarations.

My reference for the sentence out of Sanderson might have been more complete. It is to be found in the Prælectiones de Conscientiæ Obligatione, præl. vi, § 6, p. 156 of the ed. Lond. 1696; the sentence is a parenthesis and independent of the context:—“Nemo potest jure obligari ad id faciendum, cujus omissio non potest ei imputari ad culpam nec debet ei imputari ad pœnam; (omnis enim obligatio aut ad culpam est aut ad pœnam, vel etiam utramque) sed rei impossibilis omissio non potest alicui imputari ad culpam.” I have found the same expression in the other work of Sanderson, De Juramenti Obligatione. I must beg you to excuse the length of the following extract:—“Præter illam obligationis distinctionem ex origine natam, per respectum ad Jus unde oritur obligatio: est et alia ab objecto sumpta per respectum scil. ad debitum solvendum, quo tendit et in quod fertur obligatio. Duplex autem est debitum. Debitum officii, quod quis ex præcepto juris tenetur facere: et Debitum supplicii, quod quis ex sanctione juris tenetur pati, si officium suum neglexerit. Priori sensu dicimus mutua caritatis officia esse debita, quia lex Dei illa præcipit, juxta illud, Rom. xiii. *Nihil cuiquam debete, nisi ut diligatis invicem.* Posteriori sensu dicimus peccata esse debita ut in oratione Dominica, *Dimitte nobis, &c.* et mortem æternam esse debitam, juxta illud, Rom. vi. *Stipendium peccati mors.* Observandum tamen debitum posterius contrahi ex insoluto priori: ita ut si quis Debitum officii plenarie dissolveret, faciendo id quod lex imperat, non teneretur aliquo debito supplicii ad patiendum id quod lex minatur. Respondet duplici huic debito duplex item obligatio scil. ad officium faciendum; et obligatio ad supplicium preferendum: *vel quod communiter dicitur et eodem recidit, obligatio ad culpam, et obligatio ad pœnam.*”—(De Juramenti Obligatione, præl. 1, § 12, ed. Lond. 1696.)

What I said at the end of my last letter had reference to an expression of yours with regard to the faith—“our difference of opinion”—which seemed to me objectionable, as being what is called latitudinarian; it was, perhaps, unduly observed upon by me.

I remain, my dear Sir,
Yours faithfully,
HENRY WALLER,

Rev. Edw. Hoare.

Ramsgate,
January 9, 1852.

My dear Sir,

I am much obliged to you for your letter, and I shall have much pleasure in referring to as many of the passages named as I can find in my own library or borrow from my friends, but it cannot be with the view of altering my lecture, as that is already published. The Latin of the Constitution is subjoined in a note, so that if I am wrong I am open to the correction of all Latin scholars.

I remain, dear Sir,
Very faithfully yours,
EDWARD HOARE.

H. Waller, Esq.

Manor Road, Upper Holloway,
Jan. 13, 1852.

My dear Sir,

I have procured your Lecture, and read the statement which led to our correspondence, together with the note which you have subjoined as the result of it.

I cannot but feel surprised at the character of that note. There has been such an acknowledgment, on your part, of doubt on the subject, that I think I was justified in expecting some reference to it, and to the grounds of it, and then, either an admission of continued doubt, or, if so it be, a statement of the considerations which removed it. Under all the circumstances I feel that, should I think proper to do so, I shall be justified in giving publicity to

the correspondence which has taken place. Very deeply lamenting its most painful issue,

I remain, dear Sir,
Yours faithfully,
HENRY WALLER.

Rev. Edward Hoare.

Hampstead,
Jan. 16th, 1852.

My dear Sir,

With reference to your letter of the 13th, forwarded to me from Ramsgate, I think it due to myself to inform you that I had nothing whatever to do with any portion of the note in question, except the passage extending to the end of the Latin quotation, which is exactly what I told you in my last letter I intended to insert. The remainder was added through a very great mistake on the part of —, but it was not in the copy which I transmitted to the press, and I was as much surprised as you were when I saw it in the published lecture.

Should you publish my correspondence, you will of course take care to acquaint your readers with its private character, and to inform them that the letters, having been written without the least idea of publication, do not contain any attempt at a complete discussion of the subject, but are merely the expression of my varying thoughts during the process of careful investigation.

I remain, dear Sir,
Very faithfully yours,
EDWARD HOARE.

H. Waller, Esq.

FOOTNOTES.

[3] Const., part vi, chap. i.

[4] “Since the delivery of the lecture, a Roman Catholic gentleman has complained of the use then made of this Constitution, and stated that it means “that the Constitutions do not bind under pain of mortal or venial sin, unless,” &c. I cannot undertake to decide what may have been the *intentions* of the author, but I can fearlessly appeal to the opinion of any Latin scholar as to the grammatical accuracy of the translation given above. The original is as follows:—‘Cum exoptet Societas universas suas Constitutiones, declarationes, ac vivendi ordinem, omnino juxta nostrum Institutum, nihil ulla in re declinando, observari; optet etiam nihilominus suos omnes securos esse, vel certè adjuvari, ne in laqueum ullius peccati, quod ex vi Constitutionum hujusmodi, aut ordinationum proveniat, incidant: Visum est nobis in Domino præter expressum votum, quo Societas Summo Pontifici, pro tempore existenti, tenetur, ac tria alia essentialia paupertatis, castitatis, et obedientiæ, nullas Constitutiones, Declarationes, vel ordinem ullum vivendi, posse obligationem ad peccatum mortale vel veniale inducere; nisi Superior ea in nomine Domini Nostri Jesu Christi, vel in virtute obedientiæ juberet: quod in rebus, vel personis illis, in quibus judicabitur, quod ad particulare uniuscujusque, vel ad universale bonum multum conveniet, fieri poterit: [et loco timoris offensæ, succedat amor et desiderium omnis perfectionis; et ut major gloria et laus Christi Creatoris ac Domini Nostri consequatur].’ With the single additional remark, that the version thus excepted against is by no means an exclusively Protestant one, but has been adopted by most competent Roman Catholic authorities, I would earnestly recommend to my readers, of either communion, the perusal of the third letter in the Rev. Canon Wordsworth’s ‘Sequel to Letters to M. Gordon,’ where this very Constitution and this same objection are fully discussed and disposed of. Supposing, however, that the criticism, the logic, and the historical research of that eminently learned divine should fail

to satisfy the Roman Catholic reader, let him substitute for the above *supposed* doubtful passage the following, respecting which there can be no dispute: ‘They should permit themselves to be moved and directed, under Divine Providence, by their Superiors, just as if they were a corpse, which allows itself to be moved and handled in any way, or as the staff of an old man, which serves him whenever and in whatever thing he who holds it in his hand pleases to use it.—*Const.*, part vi, chap. i.’”

[7] Vide Summa, 2. 2. quæst. clxxxvi, art. ix, where St. Thomas, in treating of this very question of the obligatory force of the rules of Religious, uses the phrase nine times.

[8] There is a Review of Dr. Wordsworth’s “Sequel,” in the *Dublin Review* for July, 1848.

[14] “Thou shalt hear a voice behind thee, saying, This is the way, walk ye in it.”

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